

1 ENGROSSED HOUSE
2 BILL NO. 3606

By: Schreiber and Roberts of
the House

3 and

4 Rader and Daniels of the
5 Senate

6
7 An Act relating to sex offenders; amending 57 O.S.
8 2021, Section 590.2, which relates to the Sex
9 Offenders Registration Act; authorizing certain
10 persons to petition the court for removal from
11 registration requirements; and providing an effective
12 date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 57 O.S. 2021, Section 590.2, is
14 amended to read as follows:

15 Section 590.2. A. For purposes of this section, ~~a~~ a:

16 1. A person shall be considered for removal of the requirement
17 to register as a sex offender if the person:

18 ~~1. Was~~

19 a. was convicted of a violation of Section 1111.1 or 1114
20 of Title 21 of the Oklahoma Statutes and the person
21 does not have any other conviction for a violation of
22 Section 1111.1 or 1114 of Title 21 of the Oklahoma
23 Statutes ~~1~~ 1

24 ~~2. Is~~

1 b. is required to register as a sex offender solely on
2 the basis of a violation of Section 1111.1 or 1114 of
3 Title 21 of the Oklahoma Statutes~~7~~, and

4 ~~3. Was~~

5 c. was not more than four (4) years older than the victim
6 of the violation who was fourteen (14) years of age or
7 older but not more than seventeen (17) years of age at
8 the time the person committed the violation.

9 2. A registrant, or a legal guardian acting on behalf of the
10 registrant, may petition the court for removal of the requirement to
11 register if the registrant establishes that he or she suffers from a
12 permanent and irreversible medical or cognitive condition that
13 substantially impairs the ability of the registrant to understand or
14 comply with the registration requirements.

15 B. If a person meets the criteria provided for in paragraphs 1
16 or 2 of subsection A of this section, the person may petition the
17 court in which the sentence for the conviction occurred for removal
18 of the requirement to register as a sex offender. The person shall
19 allege in the petition that the person meets the criteria provided
20 for in paragraphs 1 or 2 of subsection A of this section and that
21 removal of the registration requirement will not conflict with
22 federal law. The district attorney shall be given notice of the
23 petition at least twenty-one (21) days before the hearing on the
24 petition. The district attorney may present evidence in opposition

1 to the requested relief or may otherwise demonstrate why the
2 petition should be denied. The court shall rule on the petition
3 and, if the court determines that the person meets the criteria
4 provided for in paragraphs 1 or 2 of subsection A of this section
5 and removal of the registration requirement will not conflict with
6 federal law, may grant the petition and order the removal of the
7 registration requirement. If the court denies the petition, the
8 person shall not be authorized to file any further petition for
9 removal of the registration requirement pursuant to this section.

10 C. If a person, who has yet to be sentenced for a conviction
11 for a violation of Section 1111.1 or 1114 of Title 21 of the
12 Oklahoma Statutes, meets the criteria provided for in paragraph 1 of
13 subsection A of this section, the person may move the sentencing
14 court for removal of the requirement to register as a sex offender.
15 The person shall allege in the motion that the person meets the
16 criteria provided for in paragraph 1 of subsection A of this section
17 and that removal of the requirement to register as a sex offender
18 will not conflict with federal law. The district attorney shall be
19 given notice of the motion at least twenty-one (21) days prior to
20 the hearing on the motion. The district attorney may present
21 evidence in opposition to the requested relief or may otherwise
22 demonstrate why the motion should be denied. The court shall rule
23 on the motion and, if the court determines that the person meets the
24 criteria provided for in paragraph 1 of subsection A of this section

1 and that removal of the requirement to register will not conflict
2 with federal law, may grant the motion and order the removal of the
3 registration requirement. If the court denies the motion, the
4 person shall not be authorized to file any further motions or
5 petitions for removal of the registration requirement pursuant to
6 this section.

7 D. If a person provides to the Department of Corrections a
8 certified copy of the order of the court removing the requirement
9 that the person register as a sex offender, the registration
10 requirement shall not apply to the person and the Department shall
11 remove all information about the person from the public registry of
12 sex offenders maintained by the Department. However, the removal of
13 information about the person from the public registry shall not mean
14 that the public is denied access to information about the criminal
15 history or record of the person that is otherwise available as a
16 public record.

17 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 24th day of March, 2026.

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4 Presiding Officer of the House
of Representatives

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6 Passed the Senate the ____ day of _____, 2026.

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8 Presiding Officer of the Senate